Eviction Case Summary

Case ID: golden-complete-pack-001

Jurisdiction: england

Generated: 30 April 2026

Parties

Claimant: Daniel Mercer

Defendant: Ivy Carleton

Property: 16 Willow Mews York YO24 3HX

Court: York County Court and Family Court

Route

Current route: Section 8 possession claim

Grounds relied on: Ground 8, Ground 10

This summary should match the grounds pleaded in the notice and court papers: The claimant relies on the following statutory grounds for possession: Ground 8, Schedule 2, Housing Act 1988 (Rent arrears; mandatory); Ground 10, Schedule 2, Housing Act 1988 (Any rent arrears; discretionary).

Tenancy start date	1 January 2024
Rent	£1200.00 monthly
Due day	1st day of each month
Current arrears	£3600.00
Arrears at notice date	£3600.00
Notice served	30 April 2026
Notice expiry date	28 May 2026
Earliest proceedings date	28 May 2026
Compliance snapshot	5 items recorded

Case Narrative

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).
The tenancy began on 1 January 2024. The contractual rent is £1,200.00 payable monthly on the 1st day of each rental period.
Ground 8 is relied on as the serious rent arrears ground.
At the date of service of the Form 3A notice on 30 April 2026, the arrears stood at £3,600.00.
That figure is presented as exceeding the statutory Ground 8 threshold of £3,600.00 (3 months).
The rent account and arrears schedule show the unpaid or short-paid periods between 1 January 2026 and 31 March 2026, 3 missed payments.
Ground 10 is relied on because rent lawfully due was unpaid when the notice was served and remains part of the claim history.
The arrears balance relied on for Ground 10 is £3,600.00.
The arrears history, service chronology, and any further tenancy concerns should be read together as part of one possession case, while each statutory ground remains separately pleaded.
Form 3A notice served on 30 April 2026, expiring on 28 May 2026, with proceedings not intended before 28 May 2026.

Compliance Status Snapshot

Use this as a risk summary, not as a replacement for the underlying tenancy documents and evidence file.

- Critical route risk: Deposit protection is recorded with TDS on 15 January 2024, but prescribed information is not recorded as served. For most post-1 May 2026 private-rented-sector grounds, the court will not make a possession order until the deposit position has been cured, the deposit has been returned, or any deposit-compliance dispute has already been resolved.
- Significant risk: No gas safety provision is recorded. This does not automatically invalidate a Section 8 notice, but it can create regulatory or evidential risk.
- Significant risk: No EPC provision is recorded. This is not treated here as automatic Section 8 invalidity, but it remains a legal and evidential risk that should be addressed.
- Advisory / good practice: No How to Rent service record is shown. That does not automatically invalidate a Section 8 notice, but it is worth checking the tenancy file and recording what was served.
- Notice served on 30 April 2026 with earliest proceedings date 28 May 2026.

Pre-action and Procedural Steps

The rent account first shows an unpaid or short-paid period from 1 January 2026. The most recent affected rental period is 1 March 2026. The current arrears total is £3,600.00 across 3 missed or short-paid rental periods.
The Form 3A notice service milestone currently recorded is 30 April 2026. The possession / proceedings date currently recorded in the file is 28 May 2026.

Defendant Circumstances

The claimant is not aware of any further information about the defendant's circumstances beyond the matters set out in the claim papers and any information the defendant may wish to place before the court.

Financial Position and Relief Sought

The claimant seeks possession and, if the court thinks fit, judgment for rent arrears currently quantified at £3,600.00.

The contractual rent is £1,200.00 payable monthly.

Form 3A notice served on 30 April 2026, expiring on 28 May 2026, with proceedings not intended before 28 May 2026.